

This Handbook replaces all prior handbooks and other prior written material provided on the same subjects. This Handbook does not equate to an irrevocable contractual commitment to the student, but only reflects the current status of the Board's policies and the School's rules. If any of the policies or administrative guidelines referenced herein are revised, the language in the most current policy or administrative guideline prevails. Copies of current Board policies and administrative guidelines are available on the District's website.

*We are excited to begin another year of learning at BBHMS. The faculty, staff, and administration are committed to helping you have a successful and productive school year. Middle school is a time for enhancing your curricular knowledge as well as your social development to become a mature and responsible citizen in the school and local community. In order to be successful, we must work together to follow the practices and procedures in this handbook to make each day safe, enjoyable, and meaningful for everyone. This daily planner is one of many resources that will help you stay organized. This document should be read by all students and parents to gain a clear understanding of the opportunities and expectations at BBHMS. Take pride in our school, be involved, and strive for your personal best.*

## DAILY SCHEDULE

|                     |                               |
|---------------------|-------------------------------|
| Students May Arrive | 7:15                          |
| 1 PERIOD            | 7:45 - 8:35                   |
| 2 PERIOD            | 8:39 - 9:27                   |
| 3 PERIOD            | 9:31 - 10:19                  |
| 4 PERIOD            | 10:23 - 11:13                 |
| 7TH Grade HIVE      | 10:23-10:46 Lunch 10:46-11:13 |
| 5 PERIOD            | 11:17 - 12:07                 |
| 6TH Grade HIVE      | 11:17-11:40 Lunch 11:40-12:07 |
| 6 PERIOD            | 12:11 - 1:01                  |
| 8TH Grade HIVE      | 12:11-12:34 Lunch 12:34-1:01  |
| 7 PERIOD            | 1:05 - 1:53                   |
| 8 PERIOD            | 1:57 - 2:45                   |

## IMPORTANT TELEPHONE NUMBERS

|                    |          |
|--------------------|----------|
| Main School Line   | 740-4400 |
| Fax #              | 740-4454 |
| Counseling Office  | 740-4421 |
| Fax #              | 740-4456 |
| Attendance Office  | 740-4405 |
| Transportation     | 740-4050 |
| Board of Education | 740-4000 |

## MIDDLE SCHOOL STAFF 2024-2025

|                           |                                        |         |
|---------------------------|----------------------------------------|---------|
| PRINCIPAL:                | Todd Rings                             | Grade 8 |
| ASSISTANT PRINCIPAL:      | Spencer Warders Grades 6 and 7         |         |
| COUNSELORS:               | Claire Gonter - 6th Grade              |         |
|                           | Jane Ciuni - 8th Grade                 |         |
|                           | Nicole Lenczewski - 7th Grade          |         |
| SCHOOL PSYCHOLOGIST:      | Joe D'Alessandro                       |         |
| ADMINISTRATIVE ASSISTANT: | Cathy Gaudio                           |         |
| SECRETARIES:              | Cheryl Strenk (Counseling Office)      |         |
|                           | Laura Jonozzo (Main Office/Attendance) |         |
| HEALTH CARE COORD:        | Kim DiRocco RN                         |         |
| SRO:                      | Officer Jose Garcia                    |         |

## Staff Member

| Staff Member            | Email                |
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| Corrigan, Dawn          | Corrigand@bbhcsd.org |

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**Vaughan, Kate**  
**Warders, Spencer**  
**Wilson, Dena**  
**Yager, Susan**  
**Zenir, Joseph**

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**Warderss@bbhcsd.org**  
**Wilsond@bbhcsd.org**  
**Yagers@bbhcsd.org**  
**Zenirj@bbhcsd.org**

May 26 8th Grade Band Memorial Day Parade  
 May 29 Academic Recognition Night 7pm  
 June 2 Kick It Day  
**June 3 Last Day For Students – Early Dismissal**  
 June 4 Last Day For Teachers

## **2024-2025**

**SCHOOL CALENDAR**  
 Aug 14 Building Visitation: Grade 7/8 9 -11 am  
 Grade 6 12- 2 pm  
 Aug 20 New Student Orientation 1pm  
**Aug 21 School Opens**  
 Aug 28 Picture Day  
 Aug 29 Meet the Teacher Night 7pm  
**Sep 2 Labor Day - No School**  
 Sep 24 6th Grade Band Informance 7pm  
 Oct 3 MS/HS Concert of Choirs 7pm  
 Oct 4 8th Grade Band Night  
 Oct 7-10 MS Book Fair  
**Oct 11 NEOEA Day – No School**  
 Oct 15 MS/HS Orchestra Concert 7pm  
 Oct 15 Fall Sports Banquet 6pm  
 Oct 17 MS Parent/Teacher conf. all grades 4-7pm  
**Oct 21 Records Day – No School for students**  
 Oct 23 MS Parent/Teacher conf. all grades 4-7pm  
 Nov 6 MS Picture Retake Day  
 Nov 7 DC Introduction Mtg 7pm  
 Nov 11 Veterans Day Event -6th grade music  
**Nov 25-26 Prof. Waiver Days - No School for Students**  
**Nov 27-29 Thanksgiving Break - No School**  
 Dec 12 6/7/8th Grade Choir Holiday Concert 7pm  
 Dec 18 6/7/8th Grade Orchestra Holiday Concert 7pm  
 Dec 19 6/7/8th Grade Band Holiday Concert 7pm  
 Dec 19 7<sup>th</sup> Grade Field Trip A Christmas Carol  
**Dec 23-Jan 3 Winter Break –No School**  
 Jan 6 School Resumes  
 Jan 14 **Teacher Records Day - No Students**  
 Jan 20 **Martin Luther King Day – No School**  
 Feb 13 MS Winter Sports Banquet 6pm  
**Feb 17 President's Day - No School**  
 Feb 26 6/7/8th Orchestra Concert 7pm  
 Mar 4 7/8th Grade Band Concert 7pm  
 Mar 5 6/7/8th Grade Choir Concert 7pm  
**Mar 21 Records Day - No School for students**  
**Mar 24- 28 Spring Break – No School**  
 April 14 Washington DC Parent Mtg 7-8pm  
 April 23-24 ELA OST Testing Grades 6,7,8  
 April 25 MS/HS Jazz Night 7pm  
 April 26 DC Chaperone Mtg 9am Media Center  
 April 30 Science Testing Grade 8  
 May 3 Music in the Parks 8th grade music  
 May 6-7 Math Testing Grade 6,7,8  
 May 8 8th Grade Music Concert 7pm  
 May 12 DC Luggage Drop Off 6-7:30pm  
 May 13-16 Gr 8 Washington DC trip  
 May 15 6/7 MS Choir Concert 7pm  
 May 20 5/6/7th Grade Orchestra Concert 7pm  
 May 20 Spring Sports Banquet 6pm  
 May 21 6/7/ Grade Band Concert 7pm  
**May 26 Memorial Day—No School**

Hazardous weather and/or other unforeseen contingencies may force an alteration of this calendar in order to comply with state law, State Department of Education dictates, and/or local Board determinations. In any event(s), the intent is to establish a 180 day calendar for students plus staff days for teacher meetings, reports, and in-service.



## **School Safety**

The STOPit app is a way for students to report issues concerning safety of all members of the school community. Call this number if you need to report any safety concerns: 1-440-381-8983.

**The information presented in this Student Handbook cannot be interpreted as totally all-inclusive. As society and school problems change, the school district and its personnel have the authority to handle such new issues as they arise.**

The Board of Education does not discriminate on the basis of race, color, religion, national origin, sex, disability, or age in its programs and activities, including employment opportunities

## **GRADING SCALE**

Letter grades in each course are based on the following percentage

|                 |          |
|-----------------|----------|
| scale: 92 – 100 | A (4.0)  |
| 90 – 91.9       | A- (3.7) |
| 87 – 89.9       | B+ (3.3) |
| 83 – 86.9       | B (3.0)  |
| 80 – 82.9       | B- (2.7) |
| 77 – 79.9       | C+ (2.3) |
| 73 – 76.9       | C (2.0)  |
| 70 – 72.9       | C- (1.7) |
| 67 – 69.9       | D+ (1.3) |
| 64 – 66.9       | D (1.0)  |
| 60 – 63.9       | D- (0.7) |
| 59 and below    | F (0)    |

## **GRADING PERIODS**

|                |                 |         |
|----------------|-----------------|---------|
| First quarter  | Aug 21 – Oct 18 | 41 days |
| Second quarter | Oct 22 – Jan 13 | 45 days |
| Third quarter  | Jan 15 – Mar 20 | 45 days |
| Fourth quarter | Mar 31 – June 3 | 44 days |

Report Cards will be posted to PowerSchool on the following dates: 10/25, 1/22, 4/4 and 6/6.

## **CREDIT FLEXIBILITY**

Credit flexibility enables students to earn high school credit based on the demonstration of subject area competency. Students may complete coursework, test out of a course, or pursue

educational options. Please see the proposal process on the web site or discuss this option with your counselor.

### **COLLEGE CREDIT PLUS**

Any student in grades 7-12 has the opportunity to earn college credit by participating in a College Credit Plus course. Please contact your school counselor if you are interested or have any questions.

### **HONOR AND MERIT ROLL**

At the end of each nine-week grading period, recognition is given to those students who achieve academically. In order to be awarded Honor Roll status, a student must achieve a grade point average of 3.75-4.00. Merit Roll status is awarded to those students who achieve an average of 3.00-3.74.

A grade of D, F, or I in any class precludes a student being included on the Honor Roll or Merit Roll.

### **STUDENT SERVICES**

Counselors will be available to assist students in making academic and personal choices. The guidance staff is also responsible for maintaining student records, planning and scheduling informational meetings, and helping coordinate the testing program. Students who need to see their counselor during the school day should visit the guidance office before school, after school, during study hall or lunch. Students and parents are encouraged to contact counselors with questions or problems at 740-4421.

**Any change of address or telephone number during the school year must be reported to the guidance office at 740-4421.**

### **SPECIAL SERVICES**

The services of a school psychologist, speech and hearing therapist, and academic tutors are available for those who qualify. In addition, a school nurse or health aide is available at regularly scheduled times.

### **CAFETERIA**

Students may pay with cash daily or prepay. Students will be issued and must use a PIN number when making a purchase.

**The overall cleanliness of the cafeteria and of individual tables is the responsibility of those who use the facility.**

Students are expected to dispose of their waste in the appropriate receptacles, and make sure their tables are clean.

With this in mind, the following expectations should be followed:

- Once you choose a seat, you must stay there for that lunch period
- Students should walk and keep hands to self
- Students should push in chairs when leaving the table
- Please keep talking to an appropriate level
- Food or beverages are not to be consumed anywhere in the building except the cafeteria
- Students must have permission to leave the cafeteria
- Students should not pull additional seats up to tables or sit at the ends of the tables
- Students will eat lunch with their entire grade level as long as lunchroom expectations are met.

### **CLINIC**

Students feeling ill or requiring medical attention are to come to the main office **with a pass from the classroom teacher/supervisor before proceeding to the clinic.** For attendance purposes, **students are not to report to the clinic between classes,** except in extreme emergencies. Students admitted to the clinic may stay for only one period; then they must either go back to class or go home. The school secretaries or clinic health staff will make calls to parents of students who need to go home.

**Illness and Fever:** A student will be sent home from the clinic if they display a temperature of 100.0 degrees or higher. Note that the child should be fever free for 24 hours without taking fever-reducing medication before returning to school. A student will be sent home from the clinic if they are vomiting. Twenty four hours should pass from the last episode of vomiting before returning to school. If a child is started on an antibiotic for a communicable disease, they need to receive 24 hours of the medication before returning to school.

**Immunizations:** The following immunizations are required under Ohio Revised Code 3313.67.

- Tdap (diphtheria, pertussis, tetanus) 7th grade
- MCV4 - meningococcal 7th and 12th grade

Proof of vaccination must be provided to the school prior to the 14th day of school. There are some exemptions provided under the law. These can be discussed with the clinic staff.

The Brecksville-Broadview Heights City School District does not anticipate, nor have scheduled any non-emergency, invasive physical examination or screening scheduled for the upcoming school year for students. This does not include vision, hearing, and scoliosis screenings, which will be scheduled throughout the year. (BOE Policy 5310)

### **MEDICATION TAKEN AT SCHOOL**

If possible, all medications should be given to all students at home. If it is necessary for a student to take medication during school hours parents/guardians may come to school and administer medication to their student OR the following conditions must be met:

- Prescription medication authorization forms need to have the physician section complete including name of medication, dosage, and time of administration. There is a section for parents/guardians to complete.
- Non-prescription medication authorization forms do not contain a physician section. Non-prescription medication authorizations are filled out entirely by the parent/guardian.
- Any medication must come to school in its original sealed container with the child's name on it. Pharmacies will provide 2 bottles when asked.
- An adult needs to bring the medication to the clinic. Students must not carry medications on the bus.
- The FIRST dose of any medication must be administered at home.

- Medication authorization forms must be completed each year.
- Asthma inhalers, epinephrine autoinjectors, and medication to treat diabetes may be carried and used by students with an Emergency Action Plan on file. Emergency Action Plans provide written authorization for self administration of these medications from the physician and the parent/guardian. (BOE 5330, 5336)
- Medication must be picked up at the end of the year or it will be discarded. (BOE Policy 5330)

### **RISK REDUCTION PROGRAM**

The Board of Education believes that the employees and students of this District, as well as visitors, are entitled to function in an environment as free from hazards as can reasonably be provided. In this regard and in accordance with law, the Board will provide reasonable and adequate protection to the lives, safety, and health of its employees and students, in compliance with Federal and State laws and regulations. Assistant Superintendent of Personnel and Business Operations shall ascertain that the employees and students of this District are aware of their rights to an environment free of recognized hazards, that they are properly trained in safety methods, that protective devices and equipment are available to meet safety standards, and that proper rules and records are maintained to meet the requirements of the law and the regulations of the Public Employees Risk Reduction Advisory Commission.

### **TRANSPORTATION**

Students are assigned to buses by the Transportation Department according to where they live, and are expected to ride only on their assigned buses. If extraordinary circumstances require a change in a bus assignment, arrangements should be made with the Transportation Department at 740-4050. No middle school student may drive any motor vehicle to school. Students must board and exit the bus at their designated stop only. Students should be on time at the designated school bus stops and should wait until the bus comes to a complete stop before attempting to enter. While on the bus, students should follow the posted bus rules and directions of the driver at all times. Any misconduct on the bus can cause the driver to be distracted and jeopardize the safety of the students on the bus as well as other vehicles on the road. Items, in total, brought on the bus should not be any larger than what can be placed on the lap or under the seat. (This includes projects, instruments, etc.)

### **BUS RULES AND REGULATIONS**

(Adapted from the Ohio Revised Code, 3301-83-20 and 3301-83-08)

1. No one shall interfere with the driver's operation of the bus.
2. No unauthorized person shall sit in the driver's seat or operate any controls.
3. The driver has the authority to assign seats.
4. Students must board and leave the bus at their designated bus stop unless they have parental and administrative permission to do so.

5. Forbidden cargoes include animals, firearms, ammunition, explosives, flammable substances, and all other dangerous materials or objects.
6. No one shall have in their possession any tobacco, alcohol, or other illegal drugs or substances.
7. No one shall throw any objects on, from, or into the bus.
8. No one shall cause any part of his or her body to project from the bus window.
9. No one shall eat or drink while on the bus.
10. No one shall cause damage to any part of the bus.
11. Profane language and fighting are prohibited on the bus.
12. Noise shall be kept to a minimum at all times to insure safety.
13. Students must remain in their seats at all times.

The driver has the authority to enforce the above rules and regulations and may issue citations. Students shall conduct themselves on the school bus as they would in the classroom. Reasonable conversation is permissible. Continued disorderly conduct or refusal to obey the driver shall be sufficient reason for losing the privilege of riding the bus to and from school and for extra-curricular activities and field trips.

Violation of bus rules may result in further school discipline.

The Transportation Department may be called at 440-740-4050 with any bus concerns.

### **Consequences for Bus Misconduct:**

- 1<sup>st</sup> Offense: "Bus Conduct Violation" (citation) is issued, a parent signature is required on citation, and the assistant principal is informed.
- 2<sup>nd</sup> Offense: "Bus Conduct Violation" (citation) is issued, a parent signature required on citation, and the assistant principal will contact parent or guardian by letter.
- 3<sup>rd</sup> Offense: "Bus Conduct Violation" (citation) is issued, a parent signature is required, and the student may lose district transportation privileges for up to 5 days.
- 4<sup>th</sup> Offense: "Bus Conduct Violation" (citation) is issued, a parent signature is required, and the student loses district transportation privileges for 5 days.
- 5<sup>th</sup> Offense: "Bus Misconduct Violation" (citation) is issued, a parent signature required, and the student loses district transportation privileges for 10 days.
- Additional Offense(s) may result in permanent removal, if warranted. These steps may be omitted if immediate removal/suspension is warranted.

## **SCHOOL POLICIES / PROCEDURES**

### **STUDENT ATTENDANCE POLICY**

#### **PHILOSOPHY:**

**Regular daily class attendance and punctuality are necessary in order for the learning process to be effective. Frequent absences disrupt the instructional process, which requires a continuity of classroom learning experiences, pupil interaction, and study in order to reach the goal of maximum educational benefits for each student. Studies show that students who miss school frequently experience great difficulty in achieving the maximum benefits of**

**instruction. We are aware that there are occasions when a student cannot be present and thus may miss an essential learning experience. However, our concern is with each student's total participation, which is reflected in the attendance procedures that follow**

**RATIONALE:**

A. The laws of Ohio require daily attendance of all students until age 18 (or age 16 if approved to withdraw and work full time).

**Rev. Code 3321.04** - Every parent, guardian or other person having charge of any child of compulsory school age who is not employed on an age and schooling certificate must send such child to a school which conforms to the minimum standards prescribed by the State Board of Education for the full time the school attended is in session, which shall, in no case, be less than thirty-two weeks per school year. Such attendance must begin within the first week of the date at which the child begins to reside in the district, or within one week after his/her withdrawal from employment.

B. Daily attendance and punctuality are essential to success in school and are necessary habits for later success in life. Daily attendance affords a student the opportunity to reap maximum benefits from the educational environment provided by the Brecksville-Broadview Heights City Schools. Excessive absences and tardies cannot be accepted.

C. Excessive absence from school may be a factor when assessing a student's quarterly, semester, or yearly performance for grading purposes.

D. Each student upon enrollment within the Brecksville-Broadview Heights City School District assumes the obligation and responsibility to attend all assigned classes except when excused by a valid reason. The following are **VALID** (Excused) reasons for absence from school:

1. Personal illness
2. Medical, dental, or legal appointment (note of verification needed to return to school)
3. Death of a relative
4. Observance of religious holidays (if it is required by his/her religion)
5. Other emergencies or circumstances that constitute good and sufficient cause as determined by the school administration

E. An Unexcused Absence exists when a student is absent from school with his/her parents' knowledge, but for a reason deemed to be unacceptable by the administration. Consequences will be enforced when deemed necessary.

Truancy is defined as absence from school and/or any part of a class without parents' and/or a school official's knowledge or permission.

**GENERAL ABSENCE PROCEDURES**

In every case of a foreseen absence, an attempt should be made to have the absence excused in advance.

**Reporting absence:**

**Parents/guardians are to call the attendance office (740-4405) to report their child's absence; a message can be left 24 hours a day.** If a parent/guardian has not called by mid-morning, an office staff member will attempt to contact a

parent or guardian to clear the absence. In the event that telephone contact is not made, the student must submit a written note from a parent or guardian to the school attendance office upon returning to school.

**Make-up work:**

When a student returns from an absence, it is his/her responsibility to make arrangements for completing make-up work. Generally, students will be allowed one day of make-up time for each day absent, but exceptions may be made with the approval of the teacher.

**If a student will be absent for two or more days, assignments may be obtained by contacting their guidance counselor.**

**HOME INSTRUCTION**

Procedures for Home Instruction of a student should begin when it is suspected that the student might be out of school for 10 or more consecutive school days due to illness. Contact your student's Guidance Counselor.

**ATTENDANCE GUIDELINES**

**A. Absences and school related absences**

1. Absences include the "VALID" reasons cited earlier under Rationale, Section D.
2. Students must be in class more than half a period or they will be considered absent for the entire period.
3. Late arrivals (to school) and early dismissals: Late arrivals and early dismissals are considered absent days when determining the total number of days absent from class.
4. Planned Absence - Vacation days are considered absent days when determining the total number of days absent from class for any period of time.
5. Out-of-School Suspensions **ARE counted as absence from school.**

School related activities or functions are not counted as absence from class. Examples are: Field trips, assemblies, calls from the office, visits to the psychologist's office, required physicals at the clinic, a pass from another teacher who has detained that student, school related activities such as sports, contests, band, etc., that are scheduled during school hours, or any other school-related activity.

**B. Procedures Governing Absence**

1. All buildings follow a policy of daily communication with the home of absent pupils who do not call the school.
2. In case of an "unexcused absence," the principal may request a home visit by the truant officer.
3. Excessive absence from school may be a factor when assessing a student's performance for grading purposes.
4. Definition of 'excessive absences' is :
  - Absent 38 or more hours in one school month **with** or without a legitimate excuse; or
  - Absent 65 or more hours in one school year **with** or without a legitimate excuse.
5. After a student has met the excessive absence hours for the school year, the parent/guardian will have to provide documentation of an excused absence if the student misses three or more consecutive days in order for the absences to be considered excused.



6. Continued excessive absences and/or unexcused absences will result in participation in mandatory school absence intervention team meeting(s) and may result in a court referral.

### **PLANNED ABSENCE**

Absences due to family vacations are discouraged during the school year. Absence for a family trip or vacation, extracurricular activities, non-school sponsored activities, etc., is to be considered planned absence.

**An Advance Notice of Absence is to be completed and submitted to the attendance office prior to the scheduled absence from school with a parental note stating the reason for the student's absence.**

1. Planned absences are NOT to be requested on those days established for semester, final exams or state-wide testing.
2. It will be the student's responsibility to make up work and/or tests missed upon return to school. No more than one day's make-up time shall be permitted for each day of absence. Teachers will not be expected to tutor individual pupils. However, due to lack of participation during vacation absence, a student's grades may be adversely affected.
3. All work and/or tests are expected to be made up in the prescribed period of time. Failure to do so will result in "0" credit to be computed in the pupil's current grading period average.
4. Absence in excess of ten consecutive school days may require individual tutoring at the parent's expense. Absences not covered in the excused, planned, and suspension categories will be handled by the school principal.

### **TARDINESS**

Excused Tardiness is tardiness **to school** in the morning provided the student brings a note or calls and arrives before the start of third period. A student may have this type of tardiness for the same reasons listed under "VALID" reasons for absence in the Rationale section. All other tardies, including "missing the bus" and "oversleeping" are considered unexcused tardies.

Unexcused Tardiness is all other tardiness not considered excused. The below policy will apply **individually to each class period** of the students' day and will reset each quarter.

- 1<sup>st</sup> unexcused tardy - warning
- 2<sup>nd</sup> unexcused tardy - second warning
- 3<sup>rd</sup> unexcused tardy - one office detention
- 4<sup>th</sup> unexcused tardy - two office detentions
- 5<sup>th</sup> unexcused tardy - office referral ½ day Saturday detention
- 6<sup>th</sup> unexcused tardy - office referral full Saturday detention

Additional unexcused tardiness within each grading quarter, will result in further disciplinary action. All excused tardies are not part of the ladder. Six (6) or more excused tardies to school will require documentation or will be considered unexcused tardy. This will reset each quarter.

### **LEAVING SCHOOL GROUNDS**

No student may leave school when school is in session without the permission of the office. Students may not leave the building or grounds for any reason between the time their regular bus arrives and departs. Students may not leave school grounds to walk to home athletic events. **Permission to leave school**

**property may be granted by the office only if the parent sends a written request.**

### **AFTER SCHOOL SUPERVISION**

The only students allowed in the building after school are those involved in a club, activity or athletics, those serving detention, or those staying for a teacher-directed study session. Students must report to their after school activities by 2:50 p.m. Students attending sporting events as spectators will be required to leave school grounds and then may return for game time using the back door by the cafeteria.

### **AFTER-SCHOOL ACTIVITIES**

Students may NOT attend or participate in after-school activities/sports if they are absent from school, serving an OSS that day, or arriving after 11:12 AM.

### **EARLY DISMISSAL**

"Early Dismissal" involves a student leaving school (absent from school) before the end of the school day. A student leaving school early must give the attendance secretary a parental note stating the time and nature for leaving. A parent or designee must sign out the student except at the end of the school day. Instances of "Early Dismissal" will be reflected on the report card.

#### **Fractional Splits**

|                  |                                          |
|------------------|------------------------------------------|
| Tardy            | 7:45 - 9:23                              |
| A.M. Absence     | 9:24 - 11:12                             |
| P.M. Absence     | 11:13 - 2:45                             |
| Full Day Absence | enter after 11:12                        |
| Full Day Absence | leave before 11:12                       |
| Half Day Absence | 70 minutes or more of class time missed. |

### **STUDENT RECORDS AND DIRECTORY INFORMATION**

Student records shall be available only to students and their parents, eligible students, designated school officials, and designated school personnel, who have a legitimate educational interest in the information, or to other individuals or organizations as permitted by law.

Both parents shall have equal access to student records unless stipulated otherwise by court order or law. In the case of eligible students, parents may be allowed access to the records without the student's consent, provided the student is considered a dependent under section 152 of the Internal Revenue Code. Only "directory information" regarding a student shall be released to any person or party, other than the student or his/her parent, without the written consent of the parent, or, if the student is an eligible student, without written consent of the student, except to those persons or parties stipulated by the Board's policy and administrative guidelines and/or those specified in the law.

Each year the District provides public notice to students and their parents of the District's intent to make available, upon requests, certain information known as "directory information." The Board designates as student "directory information": a student's name; address; telephone number; date and place of birth; major field of study; participation in officially-recognized activities and sports; height and weight, if a member of an athletic team; dates of attendance; date of graduation; awards

received; honor rolls; and scholarships. Directory information shall not be provided to any organization for profit-making purposes. The Board may disclose "directory information" on former student's rights to inspect, review, and request amendments to educational records, or if parents/students believe their rights under Federal law have been violated, please contact the Director of Pupil Services at (440) 740-4017. (BOE Policy 8830).

### **EXTRACURRICULAR PROGRAM**

Participation in extracurricular programs is an important aspect of a student's total education. We are proud of the many activities offered to our students and encourage their participation. The following are representative of the extracurricular activities and clubs offered to members of the student body.

#### **STUDENT ACTIVITIES**

- Art Club(grades 6,7,8)
- Newspaper/Honeycomb (grades 6,7,8)
- Jazz Band (grades 7,8)
- HUDDLE JR.. (grade 8)
- Builders Club (grades 6,7,8)
- Stage Crew (grades 6,7,8)
- Yearbook (grades 6,7,8)

#### **INTERSCHOLASTIC EXTRACURRICULAR TEAMS/ATHLETICS:**

- Power of the Pen (grades 7,8)
- Model United Nations (grades 7,8)
- Math Counts (grades 7,8)
- Robotics (grades 7,8)
- Cross Country (grades 7,8)
- Football (grades 7,8)
- Volleyball (grades 7,8)
- Cheerleading (grades 7,8)
- Boys Basketball (grades 7,8)
- Girls Basketball (grades 7,8)
- Wrestling (grades 7,8)
- Track & Field (grades 7,8)

Students are required to maintain a minimum grade point average of 1.5 in order to be eligible to participate in any interscholastic extracurricular activity (grades 7-12) within the Brecksville-Broadview Heights City School District. The grade point average of each grading period (quarter grades) will be used to determine eligibility. The eligibility of a student will continue until the grades are released, at which time the grades from the immediately preceding grading period are effective.

#### **ATHLETIC SPECTATOR CODE OF CONDUCT**

1. I will cheer for my team, not against my opponents.
2. As a spectator I am here as a guest of the school and will conduct myself with respectful enthusiasm.
3. I will respect the decisions of game officials even when I do not agree with them.
4. I will not criticize or demean coaches or players.
5. I will respect the welfare of the players, other spectators and the facility. I will realize that any action which threatens this welfare (throwing objects, physical or verbal attacks and game disruptions) will be cause for ejection from the premises. I also

realize that I may be denied the privilege of attending future games.

### **STUDENT PUBLICATIONS**

Publications such as the yearbook are part of the overall school program and subject to editorial control by the school's authorities.

### **STUDENT PRIVACY AND PARENTAL ACCESS TO INFORMATION**

The Board of Education respects the privacy rights of parents and their children. No student shall be required, as a part of the school program or the District's curriculum, without prior written consent of the student (if an adult or an emancipated minor) or, if an unemancipated minor, his/her parents, to submit to or participate in any survey that reveals information concerning:

- A. political affiliations or beliefs of the student or his/her family;
- B. mental or psychological problems of the student or his/her family;
- C. sex behavior or attitudes;
- D. illegal, anti-social, self-incriminating or demeaning behavior;
- E. critical appraisals of other individuals with whom respondents have close family relationships;
- F. legally recognized privileged and analogous relationships, such as those of lawyers, physicians, and ministers;
- G. religious practices, affiliations, or beliefs of the student or his/her parents; or
- H. income (other than that required by law to determine eligibility for participation in a program or for receiving financial assistance under such a program).

Additionally, parents have the right to inspect, upon request, any instructional material used as part of the educational curriculum of the student. The parent will have access to the instructional material within a reasonable period of time after the request is received by the building principal. The term instructional material means instructional content that is provided to a student, regardless of its format, including printed and representational materials, audio-visual materials, and materials in electronic or digital formats (such as materials accessible through the Internet). The term does not include academic tests or assessments.

The Board will not allow the collection, disclosure, or use of personal information collected from student for the purpose of marketing for commercial purposes or for selling that information (or otherwise providing that information to others for the purpose).

The Superintendent is directed to provide notice directly to parents of students enrolled in the District of the substantive content of this policy at least annually at the beginning of the school year, and within a reasonable period of time after any substantive change in this policy. In addition, the Superintendent is directed to notify parents of student in the District, at least annually at the beginning of the school year, of the specific or approximate dates during the school year when the administration of any survey by a third party that contains

one or more of the items described in A through H above are scheduled or expected to be scheduled. (BOE Policy 2416)

### **LOCKERS**

Each student is assigned a hallway locker. Students are to use only the locker that has been assigned to them and only the built-in combination lock –DO NOT SHARE! Lockers should be kept clean at all times. Leave non-essential valuables at home. Report damaged lockers to the main office. Lockers are school property and are under the jurisdiction of school personnel. They are NOT the personal or private property of any individual and carry no expectation of privacy for the students who occupy them.

1. The school is not responsible for any missing property.
2. The administration reserves the right to inspect any locker.

### **SEARCH AND SEIZURE**

The Board or its designee reserves the right to search the locker, desk, person and personal property of a student on school grounds, in school vehicles or at any school activity when it is reasonably necessary for the maintenance of order, discipline and safety in the supervision and education of students. At the beginning of the school year, students will be informed that their lockers, desk, persons, and personal belongings, including, but not limited to, purse, athletic bags, and articles of clothing in the locker, are subject to search at any time and without warning. Searches will be based upon reasonable suspicion. In determining whether there is reasonable suspicion, the following factors will be taken into consideration but not limited to: the age, history and school record of the students, the prevalence and seriousness of the problems, the need to avoid delay; and the reliability of the information on which suspicion is based.

### **FINES FOR MISUSE OF SCHOOL PROPERTY**

In accordance with Section 3313.642, Revised Code of the State of Ohio, the following policy is in effect:

- A. Students and their parents are liable for payment of loss, damage, or destruction of school apparatus, equipment, musical instruments, library materials, textbooks and school buildings.
  - B. A fine will be assessed against any pupil to cover the cost of replacement or repair for such loss or damage.
  - C. Any student who is responsible for the loss or destruction of a textbook will be requested to reimburse the school at the current replacement cost of that textbook. If the textbook has been in use in our district for over five years, the student will be asked to reimburse the district at 50% of the replacement cost.
  - D. Grades and credits may be withheld by the principal until the fine is paid.
- E. E. Any student who is responsible for the loss or destruction of a computer will reimburse the school at the purchase price of the computer, subject to an annual depreciation.

### **SIGNS AND POSTERS**

Any student or group wishing to display signs or posters in the building MUST obtain permission from the Main Office.

### **VISITORS**

All visitors to the middle school must sign-in and obtain a Visitor's Pass from the main office. Alumni and students from other district buildings may visit after the school day ends.

### **PROHIBITED ITEMS**

To provide a safe environment free from disruptions to the educational process, students are encouraged to not bring the following items to school: cell phones, cameras, and other non-educational items such as laser pointers, toys and other unnecessary items. These items will be confiscated if being used and appropriate consequences given. If confiscated twice, a parent/guardian will be asked to pick the item(s) up from school. **BBHMS cannot be held responsible for lost, damaged or stolen items.**

### **Cell Phone Use**

Students are encouraged to not bring a cell phone to school. If students do bring a cell phone to school the expectation is that the phone is kept in the student's locker, turned off. If a student is using their cell phone, without adult permission they will have their device confiscated and held in the guidance office until the end of the day. The office will determine the consequence.

- 1st offense - Warning
- 2nd offense - Office detention
- 3rd offense - Office detention
- 4th offense - Saturday detention and parent picks up phone
- 5th offense - Referral to Administration

### **TEXTBOOKS**

The Board of Education supplies all textbooks. When books are issued by the teacher at the beginning of the year, their general condition is recorded. When books are collected at the end of the year, a charge may be made if they are damaged, if they show excessive wear, or if they are lost. Students are responsible for the care and condition of their textbooks. They must report any lost or stolen book to their teacher immediately.

### **MEDIA CENTER**

The MS Media Center is open to students during school hours for checking out books, independent study and to work on class projects. The media center's objectives are to provide a positive environment for learning, and to offer help in research and life-long skills by offering information resources and services to our students and staff. Students are encouraged to use the media center during study halls. Books may be checked out for 3 weeks and renewed if needed. Fines will be assessed for overdue items and must be paid by the end of the quarter. Report cards at the end of year will be held until fines are paid in full.

### **COMPUTERS**

The Board of Education supplies computers for student use to enhance and support learning. Computers may be assigned to students for their use throughout the year. Students are responsible for the care and condition of their computers. They must report any lost or stolen computers immediately. Insurance programs are available and recommended to cover accidental damage. Technical support is provided in the media center before school and during lunch.



## **NETWORK ACCEPTABLE USE AND SAFETY POLICY**

The Board of Education provides educational technology so students can acquire the skills and knowledge to learn effectively and live productively in a digital world. The Board of Education provides students with access to the Internet for limited educational purposes and utilizes online services to enhance the instruction delivered to its students. Board policies posted on the district website outline the use of the District's technology resources as well as students' personal communication devices when connected to the District's network or using services provided by the District. All students and parents are responsible for reading and understanding these policies. Violations of the provisions of the Acceptable Use Policy as adopted by the Board may include school consequences and / or revocation of Internet and / or technology privileges. Violations of the Acceptable Use policy include (please note this list is not all-inclusive):

- attempts to circumvent or disable firewalls and other protection measures, including but not limited to the use of Tor software.
- hacking or other involvement in illegal online activities
- using, or attempting to access, another person's account
- cyberbullying, harassment or intimidation of any kind
- vandalism or use of the educational technologies in such a way that would disrupt its use by others. This includes but is not limited to uploading or creation of computer viruses, installing unapproved software, changing equipment configurations, deliberately destroying or stealing hardware and its components, or seeking to circumvent or bypass Network security and/or the district's technology protection measures.
- any other behavior or technology use which is in violation of the Student Conduct Code.

Internet privileges may be denied, suspended, or revoked as a consequence of violation of the provisions of this Acceptable Use Policy.

## **NETWORK CODE OF CONDUCT**

Network users must be aware that there are materials on the Internet that may be defamatory, abusive, obscene, profane, sexually oriented, threatening, racially or sexually offensive, or illegal. These materials include graphics, sounds, digital film clips, text, and other forms of media. Users of the Brecksville-Broadview Heights City Schools network agree not to use school district resources to download, copy, upload, transmit, forward, or display any such materials.

Network access is provided to support the curriculum and operations of our district. Any other use, including use of the network for personal, political, or commercial purposes is prohibited. Network users are expected to respect all applicable laws. Particularly, users agree to abide by copyright laws. Material retrieved from the Internet may not be plagiarized for any purpose. Material that is to be republished in any format may only be used with the permission of the copyright holder. Commercial software may not be downloaded, copied, installed, transmitted, uploaded, or forwarded.

Network users agree to follow security guidelines. A user will not use another person's account, pretend to be someone else, or

attempt to conceal his or her identity on the network. Users will not give others access or permission to use their accounts. Users will not repost personnel communications without the author's consent. Students will not give out personal information such as address or phone number, send other users pictures of themselves, or agree to meet with people encountered online. Exceptions to avoiding such sharing of personal information may occur only within the context of projects directed by and under the supervision of a teacher.

Electronic mail and other communications are not a private matter. School administrators have the authority to inspect email that is transmitted through the district's network. The district reserves the right to monitor all electronic communications. E-mail use that contradicts provisions of the Acceptable Use Policy will be handled appropriately. Specifically, illegal activities will be reported to law enforcement personnel, and unacceptable communications can result in network privileges being denied, suspended, or revoked as well as other discipline.

## **STUDY HALLS**

Study halls are opportunities for students to complete assignments and study content materials during the school day, so that this time does not need to be spent after school hours. These environments must allow for learning and productivity. Based on this, the following standards exist in all study halls throughout the day:

- Students are to be in their assigned seats when the bell rings.
- Students must ask for permission to leave their seats or the room.
- Students must bring materials to be ready to work.
- Students will complete homework, study lessons, or read a book.
- Students are not permitted to eat or sleep.
- Students are expected to keep a quiet study hall conducive to learning and productivity
- Students will use their student planner hall passes in order to leave the study hall

If a student is unable to meet these expectations they will be given a warning from the study hall monitor to correct the behavior. If expectations continue to not be followed a detention will be issued to the student.

## **CHEATING POLICY/HONORS VIOLATION**

Any student who is caught cheating will receive consequences as determined by the teacher and/or administration.

## **WASHINGTON DC TRIP PRIVILEGE**

The Washington D.C. trip is a privilege for 8th grade students who demonstrate good citizenship and behavior in school. A student will lose the privilege of attending the Washington D.C. trip as a result of incurring two or more days of Out of School Suspension, two or more days of In School Assignment, or two or more Saturday School detentions; or any combination of OSS, ISA and/or Saturday detention. All school rules are in effect during the duration of the trip. All school fees for current and past school years must be paid in order to attend the trip.

## **BBHCSD STUDENT DRESS CODE/STUDENT ATTIRE:**

Student dress and grooming should be such that it does not detract from the educational process or have a detrimental effect on the governance and discipline of the school; therefore, students are expected to meet reasonable standards in their dress

and grooming. **The following items are considered inappropriate during school hours:**

- sun glasses
- bare midriff clothing
- sagging pants below the hip bone
- clothing that displays reference to tobacco products, alcoholic beverages, drugs or other illegal items
- clothing that depicts violence or is associated with gang activity
- clothing that contains sexual innuendo
- all outerwear must cover underwear
- any tattoo determined to be profane, lewd or obscene shall be covered
- transparent clothing
- no hats or other head coverings except for religious reasons (MS only)
- no pajamas, pajama pants, “onesies” exception for spirit days

Outdoor apparel (coats, vests and jackets) should be placed in the student’s locker for the duration of the day. Students who consider the building to be cold should wear sweaters or sweatshirts.

**Any student who dresses inappropriately will be referred to the administration. Final decisions concerning standards of grooming will rest with the administration.**

Students who violate the dress code will be referred to the Assistant Principals’ Offices. Attempts will be made to secure appropriate clothing from home. Violators of the dress code will be disciplined according to the ladder below:

|                           |                                         |
|---------------------------|-----------------------------------------|
| 1 <sup>st</sup> violation | warning                                 |
| 2 <sup>nd</sup> violation | second warning parent phone call        |
| 3 <sup>rd</sup> violation | one office detention                    |
| 4 <sup>th</sup> violation | two office detentions                   |
| 5 <sup>th</sup> violation | ½ day Saturday detention                |
| 6 <sup>th</sup> violation | Full Saturday detention                 |
| Further Violations:       | Consequences assigned by administration |

### **HALLWAYS/RESTROOMS**

Students are expected to walk at all times while in the hallways. Students should keep hands, feet, body and all objects to themselves and be mindful of their space and others while traveling through the halls. At no time will running, jumping, playing or “horseplay” be acceptable. Students are expected to keep an appropriate conversation volume at all times and no shouting or disruptive behavior will be permitted.

Students are expected to use our restrooms appropriately and for their intended purposes. Restrooms are not a place to gather with friends and loiter. Report damage or a problem to the restroom facilities to the nearest adult or main office when you observe it.

### **Hall Passes**

In an effort to reduce hallway traffic, distractions and maximize instructional time students are allowed two hall passes per school day. Students must have the teacher/staff member from their class sign the student planner hall pass in order to leave their location. Hall passes, in most cases, will not be given during the first and last five (5) minutes of each class period. Students who are in the hall without a signed planner or pass can be given consequences.

### **MAIN OFFICE/PHONES**

Items dropped off for a student should be taken to the main office with the child’s name and grade listed. Classrooms will not be interrupted to inform a student they have an item in the office. It is the responsibility of the student to check in the main office. Items not claimed in the main office will be announced during the lunch periods. Students are to use the main office phone only in cases of emergency.

### **BEE BUCKS and BEE BUCK STORE (PBIS)**

Students will earn Bee Bucks for demonstrating any of the many positive expected behaviors we have at BBHMS. These behaviors can be found on our Positive Behavior Expectation Matrix that will be discussed and taught to our students. They are focused on Be respectful, Be ready and Be Responsible. These Bee Bucks can be used to buy many items at our Bee Buck store including various school coupons, snacks, stickers, candy and many more items. This is to reinforce and promote the positive behaviors our students demonstrate here at BBHMS daily. This is part of the middle school’s Positive Behavior Interventions and Supports

### **DISCIPLINARY ACTIONS**

There will be occasions when student actions and/or behavior warrant assigned detention time or other disciplinary consequences from school staff. There are rules and expectations at the middle school, and when these are not met, consequences may be issued. We know students will make mistakes, this is expected of middle school aged children. School issued consequences are meant to deter negative behavior and to help students learn to not make the same poor choice twice.

### **TEACHER DETENTIONS**

This is one method that teachers use to change inappropriate behavior, assignments not completed, or any other type of classroom infraction. The student will have his/her parent(s) sign the notice and return it to the teacher the next day. The student will then stay with that teacher for the amount of time specified on the detention slip. If this form of discipline does not change the behavior, then a referral to the assistant principal’s office will be made.

### **OFFICE DETENTIONS (After School Detentions)**

Detention is a supervised period assigned to students due to inappropriate behavior or disregard for regulations. The detention period is held at the end of each school day, except on Fridays. No talking, sleeping or eating is permitted during this period. Transportation home after detention is the responsibility of the student and his/her parents. Students who skip detention or do not follow expectations will be assigned an additional day

in detention. If the student chooses to skip the same detention for the second time, it will become a Saturday detention. The detention slip must be returned and signed by a parent or guardian.

### **SATURDAY DETENTION**

Saturday detentions assigned by the Building Administrator, are held on Saturdays and run from 8:00 A.M. to 10:00 A.M. or 8:00 A.M. to 12:00 P.M. Students are expected to bring school work or appropriate reading material to these detentions. Saturday detentions are issued for more serious offenses and/or repeated offenses.

### **CONSEQUENCES FOR REPEATED DETENTIONS:**

- The fifth (5<sup>th</sup>) office detention will result in a 1/2 Saturday detention. 8:00 A.M. to 10:00 A.M.
- The tenth (10<sup>th</sup>) office detention will result in one full Saturday detention 8:00 A.M. to 12:00 P.M.
- The fifteenth (15<sup>th</sup>) office detention will result in one (1) day in-school assignment
- For every 5<sup>th</sup> detention after that, the student will be sent to administration.

### **STUDENT CONDUCT CODE**

This Code shall serve as a guide to all Brecksville-Broadview Heights City School District students. Violation by a student of any one or more of the rules of the Code of Conduct may result in disciplinary action which may include one or more of the following: warning, verbal reprimand, parental contact, working lunch, detention, Saturday school detention, community service, in-school suspension, referral to legal authorities, emergency removal, suspension, and/or expulsion.

The items in this Code apply to all students when under the authority of school personnel; on school-owned vehicles, during a school activity; whether on property-owned, rented, or maintained by another party. The Cuyahoga Valley Career Center is an extension of our school program; therefore, students who elect to attend the career center are subject to disciplinary action based upon the Student Code of Conduct of either Brecksville-Broadview Heights City School District and/or the Cuyahoga Valley Career Center. Consequently, conduct and/or involvement in any activity that may or does result in disciplinary action by one school may be grounds for disciplinary action by the other school. The items in this Code also apply to misconduct, regardless of where it occurs, that is directed against a District employee or official, or the property of such employee or official, or otherwise causes a substantial disruption with school activities or the overall educational mission of the District.

In the event that a student commits an offense that warrants expulsion, the Superintendent may initiate expulsion proceedings against the student even if the student withdraws from school before the Superintendent has held the hearings or made the decision to expel the student.

### **SUSPENSION**

Pursuant to Section 3313.66 of the Ohio Revised Code and BOE policy 5610 the Superintendent, Principal, Assistant Principal may suspend a pupil from school for no more than ten (10) school days. A student suspension shall not extend beyond the

current school year, if at the time the suspension is imposed, fewer than ten (10) days remain in the school year. The Superintendent may instead require a student to participate in a community service program or other alternative consequences for a number of hours equal to the remaining part of the period of the suspension. If the Superintendent elects to do so, the student shall be required to begin a community service program or alternative consequence during the first full week day of summer break.

During an out-of-school suspension, a student is not permitted on school property and may not attend any school sponsored activities. Students serving a suspension shall be permitted to complete any classroom assignments missed because of the suspension for at least partial credit. If school is closed during this time, the suspension will occur on the next day school is in session.

Suspension may be imposed for violations of the rules and regulations appearing in the Code of Conduct and Board of Education policies on student behavior. However, conduct that is prohibited both as suspension and expulsion violation may subject the student to the greater penalty of expulsion depending on the nature and severity of the student's conduct. In all cases, the decision of which penalty to assess is left to the sole discretion of the appropriate District administrator.

### **Misconduct for which Suspension may be Imposed**

**Tobacco/Vaping:** The use or possession of tobacco/vaping products or paraphernalia in a school building, on or near a school campus, or at any sanctioned school activity on or off of the campus is prohibited.

**Gambling:** Students shall not participate in games of chance for money or other stakes, bookmaking, wagering, or any other form of gambling.

**Honor Violations:** Students shall not be involved in activities including, but not limited to: cheating, plagiarism, improper collusion, misuse of privileges, forgery, or falsification of information.

**Trespassing:** Students shall not enter upon school grounds or premises of a school building to which the student is not assigned, except with the express permission of the school principal of that building. Students may attend or participate in Brecksville-Broadview Heights City School District sponsored events. Students are not permitted to enter upon the grounds or premises of any Board of Education facility when the student has been placed on suspension, expulsion or removal without the express permission of the building principal. Students are not permitted in the school building at such times as the building is closed.

**Misuse of Facilities and Equipment:** Students shall not use school facilities, network and/or equipment for uses other than those which were intended. Students shall not damage, destroy or deface school property, or private property on school premises.

**Disruption of School:** Students shall not use violence, force, noise, coercion, threat, harassment, intimidation, fear, passive resistance, any other conduct, cause, attempt, or threaten to cause the disruption or obstruction of any mission, process, activity, or function of the school.

**Use of Flame Producing Devices.** The unauthorized use or possession of matches, lighters, or any other flame producing device on school property is prohibited.

**Use of Profane, Indecent, or Obscene Language:** Use of language of this type, whether written or verbal, directed toward or used in the presence of school personnel or students is prohibited. This shall include the use of obscene gestures, pictures and signs.

**Failure to Complete Minor Disciplinary Sanction:** A student who fails to complete an assigned minor disciplinary sanction such as Saturday school, in-school suspension, detention or working lunch will be subject to suspension.

**Insubordination or Disrespect:** Students who refuse to comply with the directions of school personnel or who talk back to, argue with, or make disrespectful comments toward any staff member or about a staff member will be subject to suspension.

**Truancy:** A student who misses school, including a study hall, class, lunch or any other assigned activity for part or all of a day without school authorization or who leaves the school building without administrative permission is subject to suspension.

**Transmission of Prescription or Non-Prescription Medication:** No student shall transmit or attempt to transmit any form of prescription or non-prescription medication to another student.

**Fireworks, Smoke Bombs, or Other Similar Devices:** No student shall possess, use or threaten to use fireworks, smoke bombs, or any other similar devices while on school property or while participating in any school sponsored activity.

**Theft or Unauthorized Possession:** Theft or unauthorized possession of school property or equipment, personal property of any District employee or of another student or visitor is grounds for suspension.

**Fighting:** Fighting among two or more students is grounds for suspension.

**Harassment:** Students shall not engage in any obscene, abusive, profane or degrading gestures or expressions; racial, ethnic or religious prejudicial or disrespectful actions; harassment of any kind (including sexual) to any individual or group; or intimidation and/or threats to an individual or group. This includes publication or distribution of materials meeting this description.

**Assault:** No student shall cause, attempt or threaten to cause physical injury to any person on school property or any school event.

**Extortion:** Students shall not solicit money or objects of value from other students for any reason.

**Complicity:** Students shall not be present or in such a position as to allow or assist another student to be in violation of any school rule. This specifically includes, but is not limited to students who serve as “lookouts.”

**Appearance Code:** Students shall not violate school rules pertaining to appearance and dress. Students shall attend dressed in a manner which is clean, not hazardous to their safety or the safety of others and which does not detract from the educational process.

**Hazing:** No student shall harass, persecute or participate in any act or acts or attempt to threaten, injure, disgrace, or tend to injure, degrade or disgrace any other student.

**Gang Activity:** Students shall not engage in any gang activity. Any indication of gang activity by the type of dress, apparel, activities, acts, behavior or manner of grooming, displayed, reflected, or participated in by a student is prohibited.

**Gross Misconduct/Repeated or Flagrant Violations:** Gross misconduct or repeated or flagrant violations of any school rule may result in suspension.

**Repeated Tardiness** to class or school

**Other Grounds for Suspension:** Commission of any of the acts which are grounds for expulsion could also result in suspension and/or any acts that constitute a violation of Local, State, or Federal Law.

## **EXPULSION**

Pursuant to Section 3313.66 of the Ohio Revised Code, the Superintendent may expel a pupil from school attendance for a period not to exceed the greater of eighty (80) school days or the number of school days remaining in the semester or term in which the instant it gives rise to the expulsion takes place. If at the time an expulsion is imposed there are fewer than eighty (80) school days remaining in the school year in which the incident that gives rise to the expulsion takes place, the superintendent or his/her designee may apply any remaining part or all of the period of the expulsion to the following year.

Specific offenses involving firearms and knives capable of causing serious bodily injury shall result in the student's expulsion for one (1) year. The term of that expulsion may be reduced to less than one (1) year by the Superintendent for the reasons listed in Board policy. Specific offenses involving violent conduct may result in the student's expulsion for a period of up to one (1) year at the discretion of the Superintendent. Bomb threats may result in the student's expulsion for a period of up to one (1) year at the discretion of the Superintendent.

### **Misconduct for which Expulsion may be Imposed**

**Assault:** To cause or attempt to threaten or cause physical injury to any person is grounds for expulsion.

**Making False Fire Alarms and Bomb Threats:** Students shall not, through written, electronic or verbal means disrupt or threaten to disrupt the educational process and/or endanger or threaten to endanger the safety of school occupants by means of false alarms and/or bomb threats.

**Involvement with Alcoholic Beverages:** A student shall not possess, transmit, buy, sell, conceal, use or be under the influence of any alcoholic beverage at any time the student is subject to the authority of the school. Use of an alcoholic beverage shall be determined by the professional staff and may include, but not be limited to, detection on the breath of the student, regardless of where the alcoholic beverage may have been consumed. A student shall not consume any alcoholic beverage before arrival at school or a school sponsored or related event or activity.

**Involvement with Drugs and Drug Paraphernalia:** A student shall not possess, use, transmit, buy, sell or conceal any of the drugs defined as a “drug of abuse” in Ohio Revised Code Section 3719.011 or possess, use, transmit, buy, sell, or conceal any of the drugs defined as “counterfeit controlled substance” in Ohio Revised Code Section 2925.01 or be under the influence of any such drugs. Nor shall any student possess, use, transmit, buy, sell or conceal any drug related paraphernalia at any time the student is subject to the authority of the school. Examples of drugs of abuse include, but are not limited to, narcotic drugs, “look alike” drugs, hallucinogenic drugs, amphetamines, barbiturates, marijuana, cocaine, or derivatives, glue, or other substances that could modify behavior. A student shall not use any drug of abuse before arrival at school or at a school sponsored or related event or activity. Use of drugs authorized by a medical prescription from a licensed physician shall not be considered a violation of this rule. However, no student may self-administer drugs authorized by a medical prescription from a licensed physician, except for asthma inhalers. Students in grades six through 12, self-administering of non-prescription “over-the counter” medication (aspirin, ibuprofen, cough drops, etc.) shall not be considered a violation of this policy. Students in grades kindergarten through five may not self-administer any medication, whether prescription, non-prescription, or “over the counter.” A student who demonstrates behavior seemingly related to drug usage or who exhibits symptoms or physical conditions that may be related to drug usage shall be referred by a staff member for observation and questioning by a school administrator. If the suspicion of drug usage still exists, the parents shall be informed immediately and shall be requested to come to school as soon as possible. Based on his/her professional judgment, the administrator may send the student home in the custody of his/her parents.

Counterfeit, controlled substances or “look alikes” shall be defined as:

a. any drug that bears, or whose container or label bears, a trademark, trade name, or other identifying mark used without authorization of the owner or writes such trademark, trade name, or identifying mark;

b. any unmarked or unlabeled substance that is represented to be a controlled substance manufactured, processed or packed or distributed by a person other than the person that manufactured, processed or packed or distributed it;

c. any substance that is represented to be a controlled substance but is not a controlled substance or is a different controlled substance;

d. any substance other than a controlled substance that a reasonable person would believe to be a controlled substance because of its similarity in shape, size and color for its markings, labeling, packaging, distribution for the price for which it is sold or offered for sale.

**Disruption of School:** A student shall not, by use of violence, force, noise, coercion, threat, harassment, intimidation, fear, passive resistance, or any other conduct, cause, attempt or threaten to cause or urge other students to cause, attempt or threaten to cause disruption or obstruction of any lawful mission, process or function of the school.

**Arson/Attempted Arson/Possession of Incendiary Device:** Setting fires or the use or possession of any incendiary device is prohibited.

**Involvement with Weapons or Dangerous Instruments:** A student shall not use, possess, handle, transmit, sell or conceal any object that can be classified as a weapon or dangerous instrument. Weapons or dangerous instruments include, but are not limited to guns, knives, metal knuckles, straight razors, explosives, noxious irritants, poisons and other dangerous substances along with any item that is a “look alike” of the above, i.e., toy guns, knives, etc. or any object which is used or may be used to inflict physical harm. Weapons violations may result in expulsion for up to one (1) year.

**Harassment:** Students shall not engage in any obscene, abusive, profane or degrading gestures or expressions; racial, ethnic or religious prejudicial or disrespectful actions; harassment of any kind (including sexual) to any individual or group; or intimidation and/or threats to an individual or group. This includes publication or distribution of materials meeting this description.

**Violation of the Tobacco Policy:** A student who violates the tobacco policy for the third time is subject to expulsion.

**Repeated or Continued Violation of Minor School Conduct Rules or Rules for which Suspension may be Imposed:** If, after out-of-school suspension, a student continues to violate minor school conduct rules, expulsion may result at the next step. Additionally, a student who has been suspended may be expelled for new suspendable conduct after having served an out-of-school suspension.

**Violation of Local, State or Federal Laws:** Any act that would be a criminal offense when committed by an adult property (as defined by Section 2901.01 of the Ohio Revised Code) is prohibited and may subject the offender to expulsion for up to one (1) year. Violation of criminal laws will also result in referral from criminal prosecution to juvenile court.

## **PROCEDURE FOR SUSPENSION, EXPULSION AND EMERGENCY REMOVAL**

**SUSPENSION PROCEDURE:** The Superintendent, Principal and Assistant Principal are the only District employees who have the authority to suspend a student. The suspension procedure is as follows:

1. The Superintendent, Principal or Assistant Principal must give the pupil a written notice of the intention to suspend and the reasons for the intended suspension. When the intended suspension is for the following reasons and the student suspended is **16 years of age or over**, the notice will also indicate the student may also be subject to permanent exclusion from school if the code of conduct violation is one of the following:
  - a. Illegal conveyance or possession of a deadly weapon or dangerous ordnance, carrying a concealed weapon, aggravated trafficking, trafficking in drugs, trafficking involving the possession of a bulk amount of a controlled substance or the sale of a controlled substance; and/or
  - b. Acts in violation of Ohio Revised Code Sections 2903.01, 2903.02, 2903.04, 2903.11, 2903.12, 2907.02, 2907.05, or the former Ohio Revised Code Section 2907.12.
2. The student will be given an opportunity to appear at an informal hearing before the Principal, Assistant Principal, or the Superintendent or his/her designee, and challenge the reason(s) for the intended suspension or to otherwise explain his/her actions.
3. The Principal, Superintendent, or Assistant Principal shall within one (1) school day after the time of a pupil's suspension, mail written notification to the parent, guardian, or custodian of the pupil and the Treasurer of the Board of Education of such suspension.
4. The written notice of the suspension must include: the reasons for the suspension; the inclusive dates of the suspension; a statement that the pupil, parent, guardian, or custodian has the right to appeal in writing to the Board of Education or its designee.
5. The pupil, parent or guardian shall have five (5) school days to appeal the suspension. The appeal must be made in writing and submitted to the Board of Education or its designee.
6. The appeal hearing of a suspension before the Board of Education or its designee shall be held within five (5) school days after the appeal is made.
7. At the appeal hearing before the Board of Education, the pupil, parent, guardian or custodian has the right for parental or legal representation; the right to request that the hearing be held in executive or public session; and the right to be heard against the suspension. The Board of Education may have legal counsel and the Board or its legal counsel shall make a verbatim record of the hearing. Verbatim can mean the use of a stenographer, a tape recorder, or other mechanical device.
8. At the request of the pupil, parent, guardian, custodian or legal representative, the Board of Education may hold the hearing in either public or executive session but shall act upon such suspension only at a public meeting. The Board of Education or its designee may, by majority vote of its full membership, affirm the

order of suspension, or any reverse, vacate or modify the order of suspension.

9. In the event that the hearing is conducted by the Board of Education's designee, the Board will automatically adopt the findings of the designee.
10. The decision of the Board of Education may be appealed to the Court of Common Pleas under provisions of Ohio Revised Code 2506.01.

#### EXPULSION PROCEDURE

The Superintendent shall give the pupil and his parent, guardian, or custodian, written notice of the intention to expel the pupil and the reasons for the intended expulsion. The Superintendent shall institute expulsion proceedings with respect to any student who has committed an act warranting expulsion even if the student has withdrawn from school after the incident, but before the expulsion is imposed, and, if warranted after a hearing, shall impose the expulsion as if the student had not withdrawn.

1. The notice to the pupil and his parent, guardian, custodian, or representative, shall include notice of the opportunity to appear in person before the Superintendent or his/her designee at an informal hearing to challenge the reasons for the intended expulsion, or to otherwise explain the pupil's actions.
2. The notice must also state the time and place to appear to challenge the possible expulsion. The informal hearing must not be scheduled less than three (3) school days or later than five (5) school days after the notice is given, unless the Superintendent grants an extension of time at the request of the pupil, or his parent, guardian, custodian, or representative. If an extension is granted after giving the original notice, the Superintendent or designee shall notify the pupil, and his parent, guardian, custodian, or representative, of the new time and place to appear.
3. When a student is expelled for the following reasons and is 16 years of age or older, the notice will also indicate the student may also be subject to permanent exclusion from school if the code of conduct violation is one of the following
  - a. Illegal conveyance or possession of a deadly weapon or dangerous ordnance, carrying a concealed weapon, aggravated trafficking, trafficking in drugs, trafficking involving the possession of a bulk amount of a controlled substance or the sale of a controlled substance; and/or
  - b. Aggravated murder, murder, voluntary or involuntary manslaughter, felonious or aggravated gross sexual imposition or felonious sexual penetration, if the victim is a district employee.
4. Within one (1) school day after the hearing, should an expulsion be invoked, the Superintendent shall mail written notification to the parent, guardian or custodian of the pupil and the Treasurer of the Board of Education of the expulsion with the issuance of a summary of the expulsion hearing. The notification must include the reasons for the expulsion; the rights of the pupil, parent, guardian, or custodian to appeal to the Board of Education or its designee; the right to request that the Board hearing be held in public or executive session;



and the right of the pupil, parent, guardian or custodian to be represented at the appeal hearing. The request to appeal must be made within five (5) school days of the issuance of the summary of the expulsion hearing, and shall be in writing and submitted to the Board of Education.

5. At the appeal hearing, the pupil, parent, guardian or custodian shall have the right to representation; the right to request that such hearing be in executive session, and the right to be heard against the expulsion.
6. The Board of Education shall act on the expulsion only at a public meeting. The Board may have legal counsel at the hearing. The Board, by majority vote of its full membership, or its designee may affirm the order of expulsion or may reinstate such pupil or otherwise reverse, vacate or modify the order of expulsion.
7. The Board of Education or its designee shall make a verbatim record of hearings held under this provision. The decision of the Board of Education or its designee is further appealable to the Court of Common Pleas under provision of Chapter 2506 of the Ohio Revised Code.
8. In the event that the hearing is conducted by the Board of Education's designee, the Board will automatically adopt the findings of the designee.
9. Any Superintendent expelling a pupil under this section for more than twenty days or for any period of time if the expulsion will extend into the following semester or school year shall, in the notice required under this provision, provide the pupil and his/her parent, guardian or custodian with the information about services or programs offered by public and private agencies that work toward improving those aspects of the pupil's attitudes and behavior that contributed to the incident that gave rise to the pupil's expulsion. Such information shall include the names, addresses, and phone numbers of the appropriate public and private agencies.
10. High school credit and credit under joint enrollment post-secondary programs may be denied for the period of any expulsion. Notice of the expulsion will be sent to any college in which the expelled student is enrolled.
11. Notice of any expulsion for violations of the dangerous weapons policy shall be sent to the Registrar of Motor Vehicles and the Cuyahoga County Juvenile Judge.

**EMERGENCY REMOVAL OF STUDENTS** If a student's presence poses a continuing danger to persons or property, or an ongoing threat of disrupting the academic process, the Superintendent, Principal, or Assistant Principal may remove the student from curricular activities or from the premises. A teacher may remove the student from curricular activities under his supervision, but not from the premises. If a teacher makes an emergency removal, the reasons will be submitted to the principal in writing as soon after the removal as practicable. In all cases of normal disciplinary procedures where a student is removed from a curricular or extracurricular activity for less than 24 hours and is not subject to further suspension or expulsion, the due process requirements do not apply.

If the emergency removal exceeds 24 hours, then a due process hearing will be held as soon as possible, but in all cases within 3 school days after the removal is ordered. Written notice of the hearing and the reason for removal and any intended disciplinary action will be given to the student as soon as practicable prior to the hearing. The student will have the opportunity to appear at an informal hearing before the principal, assistant principal, superintendent, or designee, and has the right to challenge the reasons for the intended suspension or otherwise explain his actions. The person who ordered or requested the removal will be present at the hearing, and within 24 hours of the decision to

suspend, written notification will be given to the pupil, parent, guardian or custodian of the student, and treasurer of the Board. This notice will include the reasons for the suspension and the right of the student or parent to appeal to the Board's designee. If the superintendent or principal reinstates a student prior to the hearing for emergency removal, the teacher may request and will be given written reasons for the reinstatement. The teacher cannot refuse to reinstate the student. In an emergency removal, a student can be kept from class until the matter of his misconduct is disposed of either by reinstatement, suspension, or expulsion. Any appeal to the Board's designee shall follow the procedures of the suspension policy. Procedural safeguards must be followed for all removals of handicapped students in accordance with the student's individual education program.

### **DISCRIMINATION/HARASSMENT**

The Board views harassment as a form of discrimination. Harassment is defined as intimidation by threats of or actual physical violence; the creation, by whatever means, of a climate of hostility or intimidation; or the use of language, conduct or symbols in such a manner as to be commonly understood to convey hatred, contempt or prejudice or to have the effect of insulting or stigmatizing an individual.

1. Employees or students who engage in discrimination/harassment of another employee or student shall be subject to disciplinary action. Permission, consent or assumption of risk by an individual subjected to discrimination/harassment does not lessen the prohibition contained in this policy.

The Board's policy on nondiscrimination will extend to students, staff, job applicants, the general public and individuals with whom it does business and will apply to race, color, or national origin, citizenship status, religion, sex, economic status, age, handicap and other human differences.

### **SEXUAL HARASSMENT**

#### **General Statement**

Sexual harassment is inappropriate, offensive and detrimental to the creation of a healthy educational environment. All students have a right to be educated in an environment free from sexual harassment and all Board employees have a right to work in an environment free from sexual harassment. In addition, all persons coming in contact with the District have a right to experience an environment free from sexual harassment.

The Brecksville-Broadview Heights School District Board of Education prohibits sexual harassment of or by any student or Board employee. This prohibition encompasses sexual harassment which may occur between employees, between students, between a student and an employee, or between an employee and a member of the public coming in contact with the District. This policy applies to conduct during and relating to the school and school sponsored activities.

#### **Definition of Sexual Harassment**

1. Submission to such conduct is made either explicitly or implicitly as a term or condition of an individual's employment, or academic status or progress.
2. Submission to or rejection of such conduct by an individual is used as the basis for employment or academic decisions affecting the individual.
3. Submission to or rejection of the conduct by the individual is used as the basis for any decision affecting the individual regarding benefits and services, honors, programs, opportunities or activities available at or through the school.

4. Such conduct has the purpose or effect of unreasonably interfering with or having a negative impact on the individual's academic or work performance, or of creating an intimidating, hostile or offensive educational or work environment for the individual.
5. Sexual harassment includes unwelcome sexual advances, requests for sexual favors, and other verbal or physical conduct or sexual nature which may violate the security, dignity, self-worth, safety, or the ability to work in an environment free of sexual harassment.
6. Sexual harassment may include, but is not limited to:
  - a. Unwelcome sexual flirtations, touching, advances, or proposition
  - b. Verbal or physical abuse of a sexual nature
  - c. Graphic or suggestive comments about an individual's dress or body
  - d. The use of sexually degrading words to describe an individual
  - e. Displaying sexually aggressive objects or photographs
  - f. Sexually explicit or obscene jokes

#### **Reporting and Investigating Harassment**

It is the responsibility of every supervisor and principal to recognize acts of harassment and take necessary action to ensure that such instances are addressed swiftly and effectively. Consequently, all administrative and supervisory staff in schools, offices and other facilities should be aware of and responsible for implementing the harassment complaint resolution procedures established through this policy.

Persons who have reason to believe that harassment has occurred should promptly report the incident:

A. (For Students reporting) to his/her principal, other administrator, school counselor or teacher.

B. (For Employees reporting) to his/her building principal; for employees in the Maintenance Department, Transportation Department, or the Education Center, to the Assistant Superintendent. Administrators would report to the Superintendent.

Subject to legal reporting obligations, considerations of safety and any determination that is made to notify the parent or guardian of a minor student, reasonable measures shall be taken to keep the incident confidential.

#### **BULLYING**

The Board of Education prohibits acts of harassment, intimidation, or bullying. The School District is committed to providing a safe, positive, and productive environment for all of its students. All members of the school community should be treated with dignity and respect. Bullying, like other disruptive or violent behaviors, is conduct that disrupts both a student's ability to learn and a school's ability to educate its students in a safe environment. Harassment, intimidation, or bullying of students or personnel by students, school personnel, or school volunteers is prohibited, whether in the classroom, on school property, on school buses or vehicles, at school-sponsored events, or in cyber-space. Demonstration of appropriate behavior, treating others with civility and respect, and refusing to tolerate harassment or bullying is expected of students, administrators, faculty, staff and volunteers.

Any student or student's parent/guardian who believes s/he has been or is the victim of harassment, intimidation, or bullying should immediately report the situation to the building principal, assistant principal, or the Superintendent. The student may also report concerns to teachers and other school staff who will be responsible for notifying the appropriate administrator or Board official.

#### **TOBACCO/ALCOHOL/DRUG POLICY FOR EXTRACURRICULAR ACTIVITIES AND INTERSCHOLASTIC ATHLETES Addendum 8-28-97** **STATEMENT OF PHILOSOPHY**

The Board of Education, administrators, athletic department and activity advisors of the Brecksville-Broadview Heights City Schools consider participation in extracurricular activities and interscholastic athletics to be a privilege, not a right. Students are VOLUNTEERING to participate in these programs and are expected to accept the responsibilities granted them by this privilege.

As representatives of our school district, students involved in extracurricular activities and interscholastic athletics are scrutinized by the public, become role models for young children and peers, and are ambassadors to our community. In choosing to accept this role, participants also choose the responsibilities of having a tobacco, alcohol and drug free lifestyle. Although this policy outlines the expectations and consequences required of students choosing to participate in extracurricular activities and interscholastic athletic, the parent(s) or guardian(s) retain the ultimate responsibility of promoting healthy lifestyle choices for their children and are encouraged to work cooperatively with school officials to support these ideals throughout the child's entire educational experience in the Brecksville-Broadview Heights Schools.

In keeping with the philosophy of education, the Board of Education, administrator, athletic department, and activity advisors of Brecksville-Broadview Heights City School District view tobacco, alcohol, and drug use not only as a violation of the law, but as a problematic behavior which has an adverse effect on individuals and the programs in which they are involved. It is the intent, therefore, to support a disciplinary program which encourages students to recognize and deal with the causes for their use through contact with the appropriate agency (C.A.P.A., private counselors, treatment facilities, etc.) rather than being strictly punitive in nature.

This policy will be in effect during the entire calendar year, inclusive of all training, condition, practices, or other school related/sponsored activities, and the policy remains in effect 24 hours a day, 7 days a week (24/7-365 days).

#### **Tobacco and Tobacco Products, Alcohol and Drugs**

Possession and/or Use of Tobacco and Tobacco Products, Alcohol or Drugs: In accordance with the rules of Brecksville-Broadview Heights City School District, except for supervised medications prescribed by a physician, a student under the influence, using, possessing, buying or receiving drugs (narcotics, hallucinogens, intoxicants, counterfeits, look-alikes, designers,) anabolic steroids, controlled substances and alcohol at any time and at any place is in violation of the code and, if apprehended by school or appropriate law enforcement personnel, is subject to the following consequences:

First Violation: The first-time offender will be denied participation in all extracurricular and/or athletic programs for one full calendar year from the date of violation. If the student agrees to schedule himself/herself into and complete the first available school Insight Program, the term of denial will be up to 20% of the activity time for extracurriculars up to 20% of scheduled competition time for athletes in any sport in which the students participate. Upon completion of the program, the student must be willing to follow the recommendations provided. If no school Insight Program is presently available, the student's parents may choose, at their own expense, to enroll the student in an outside school-approved program. Completion of the program is mandatory.

See BOE Policy for further explanation/procedures.